

## **Calendar Lines 6 – 19**

Case Name: *Herlinda Estrada et al. v. Chattem Inc. et al.*  
Case No.: 25CV483219

This is a complex asbestos personal-injury action. Eleven opposed matters are now before the Court. Three are motions to quash service of summons due to lack of personal jurisdiction. Four are demurrers to the third cause of action for fraud, and four are motions to strike the allegations supporting punitive damages. Having considered the moving papers, the oppositions, and the replies, the Court makes the following rulings.

1. The Court GRANTS the motions to quash brought by Mineral Technologies, Inc. and Specialty Minerals Inc.
2. The Court DENIES the motion to quash brought by PTI Union, LLC.
3. The Court OVERRULES the demurrers brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.
4. The Court DENIES the motions to strike brought by CVS Pharmacy, Inc., Longs Drugs Stores California, L.L.C., Walgreen Co., and Walmart Inc.

### **I. Background**

Plaintiff Herlinda Estrada has malignant pleural mesothelioma, and she alleges it was caused by cumulative exposure to asbestos in cosmetic talc, including the store-brand talcum powder products sold by four retailer defendants and the talc supplied or processed by other defendants. Her husband sues for loss of consortium. The Court granted Plaintiffs' motion for trial preference and set trial for September 14, 2026. The Court directed that the pleading motions be advanced and heard together so that the pleadings are settled well before trial.

A group of three defendants challenge this court's jurisdiction over them in this action, contending their contacts with the State and their connections to Plaintiffs' claims are too attenuated.

The four demurring retailer defendants challenge the Complaint's third cause of action only. The third cause of action is for fraud and pleads four separate theories: fraudulent misrepresentation; fraudulent concealment; conspiracy to commit fraudulent misrepresentation;

and conspiracy to commit fraudulent concealment. (Complaint, pp. 102–105.) The same four defendants also move to strike the Complaint’s allegations of malice, oppression, and fraud in support of its prayer for punitive damages. (*Id.* at pp. 106.)

## **II. The Motions to Quash Service of Summons**

A motion to quash tests the Court’s power over the defendant. (Code Civ. Proc., § 418.10.) “California courts may exercise personal jurisdiction on any basis consistent with Constitutions of California and the United States. [Citation.]” (*Pavlovich v. Superior Court* (2002) 29 Cal.4th 262, 268.) When a nonresident defendant moves to quash, the plaintiff must prove facts justifying the exercise of jurisdiction by a preponderance of the evidence. (*Id.* at p. 273.) The court does not presume its own power, and conclusory assertions of contact with the forum do not suffice. (*Ibid.*)

General, all-purpose jurisdiction reaches only a defendant that is essentially at home in the State; for a corporation, this is ordinarily its State of incorporation or its principal place of business. (*Daimler AG v. Bauman* (2014) 571 U.S. 117, 137 (*Daimler*).) Specific jurisdiction is narrower and depends upon the claims alleged. It requires that the defendant has purposefully availed itself of the forum, that the plaintiffs’ claims arise out of or relate to those forum contacts, and that the exercise of jurisdiction comport with fair play and substantial justice. (*Bristol-Myers Squibb Co. v. Superior Court* (2017) 582 U.S. 255, 262; *Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062 (*Snowney*).) If the plaintiff meets their initial burden of demonstrating facts justifying the exercise of jurisdiction, then the defendant has the burden of demonstrating the exercise of jurisdiction would be unreasonable. (*Snowney, supra*, 35 Cal.4th at p. 1062.)

### **A. Minerals Technologies, Inc.**

MTI is not at home in California. There is no general jurisdiction over MTI because it is neither incorporated nor headquartered here. Plaintiffs’ showing of specific jurisdiction also fails on the record before the Court. The record establishes a corporate relationship to other entities in the talc supply chain, as opposed to purposeful and claim-related conduct directed at

California by MTI itself. Plaintiffs do not tie MTI's own forum conduct to the talc that allegedly injured Mrs. Estrada. Instead, the connection they offer is mediated through other companies and is, on this record, too attenuated to satisfy due process.

Accordingly, Minerals Technologies, Inc.'s motion to quash is GRANTED, and service of summons on Minerals Technologies, Inc. is quashed.

**B. Specialty Minerals, Inc.**

The analysis for SMI is materially the same as that for MTI, as is the result. SMI is not at home in California. Plaintiffs again rest on the structure of the corporate family and on generalized participation in a stream of commerce, rather than on purposeful, claim-specific contacts that may be attributed to SMI itself. On the record before the Court, the connection between SMI and Plaintiffs' claims is too attenuated because Plaintiffs fail to link SMI's forum-specific conduct to the harm caused to Mrs. Estrada.

Accordingly, Specialty Minerals Inc.'s motion to quash is GRANTED, and service of summons on Specialty Minerals Inc. is quashed.

**C. PTI Union, LLC**

PTI Union stands on a different footing than MTI and SMI. Plaintiffs do not assert general jurisdiction, and none exists. PTI Union is a North Carolina limited liability company with its principal place of business in Missouri; it is not "at home" in California. (Noland Decl., ¶ 3; *Daimler, supra*, 571 U.S. at pp. 137–139.) The analysis hinges on whether Plaintiffs have established facts supporting specific jurisdiction.

**1. Purposeful Availment**

Plaintiffs' meet their burden regarding purposeful availment by way of PT Union's own verified discovery responses in the Alameda County *Maricich* case (*Maricich, Jr. et al. v. Chattem, Inc. et al.* (Super. Ct. Alameda County, 2025, No. 25CV116787). (Stewart Decl., Ex. 1 at pp. 14:1–22, 17:1–18, 10:24–11:23.) These allegations establish that PT Union blended and bottled "100% of the U.S. requirements" of certain Dr. Scholl's products containing talc